

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution 28-007

**Amendments to Title 8, Chapter 3 Section 8-301 of the Chickasaw Nation Code
(Changing Voter Districts)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section I of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously established rules and procedures for annual elections, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and procedures.

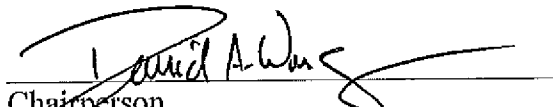
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8, Chapter 3 Section 8-301 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

"SECTION 8-301

**ELIGIBILITY TO VOTE, APPLICATION FOR
REGISTRATION.**

C. Registering Voters shall be an ongoing function of the Election Secretary/Tribal Registrar except for closed periods as defined herein. When registering Voters, the Election Secretary/Tribal Registrar shall accurately record all information provided by the applicant, including the applicant's district of residence or, if the applicant does not reside within the Chickasaw Nation, district of choice. Voters living outside the boundaries of the Chickasaw Nation shall ~~not~~ be allowed to change from one (1) district to another district one time beginning on January 1, 2012. ~~starting April 1, 2009.~~ Voters must request the changes in writing on a form provided by the Election Secretary/Tribal Registrar. ~~All Voter District changes shall be submitted in writing to the Election Secretary/Tribal Registrar.~~ All changes including new and deceased voters, undeliverable ballots and change of districts shall be done during the time that Voters' registration is open, with the exception of removal of undeliverable ballots and deceased voters after the primary election and prior to any run-off election."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December, 16, 2011, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 16 2011

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(Changing Voter Districts)**

Explanation: This resolution approves amendments to Title 8, Chapter 3 Section 8-301 of the Chickasaw Nation Code so that voters residing outside the boundaries of the Chickasaw Nation shall be allowed to change from one voting district to another district one time beginning on January 1, 2012. All voter district changes shall be submitted in writing to the Election Secretary/Tribal Registrar.

Presented By: Election Rules and Regulations Ad Hoc Committee